

Court No. - 9

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. & Another

Petitioner Counsel :- Ram Kishor Gupta, Mahesh Kr. Gupta

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have heard learned counsel for the petitioner, learned standing counsel appearing for respondent no.1 and Shri Rajesh Tripathi learned counsel appearing for respondent no.2. They are allowed one month time to file counter affidavit. Three weeks thereafter is allowed to the petitioner for filing rejoinder affidavit.

List thereafter.

The petitioner's electric connection was temporarily disconnected on 7.3.2006 and was also permanently disconnected on the same day i.e., on 7.3.2006. Thereafter the respondent no.2 is recovering the amount of Rs.2,09,669/- from the petitioner on the ground that they have waived off the amount of Rs.5,28,156/- and therefore, the balance amount could be recovered from the petitioner as per the office memorandum issued on 2.9.2009. Learned counsel for the petitioner has urged that in view of section 56(2) of the Electricity Act, 2003 read with clause 6.15 of the Electricity Supply Code, 2005 the respondents cannot recover any amount from the petitioner after a period of two years which was recoverable within a period of two years. Prima facie it appears that the respondents are making recovery from the petitioner after a period of two years from the date of permanent disconnection. The recovery proceedings appears to be time barred. Therefore, the petitioner is entitled for interim order.

Until further orders of this court, recovery proceedings against the petitioner for a sum of Rs.2,09,669 in pursuance of memorandum dated 2.9.2009 and 29.10.2009 issued by respondent no.2, annexure-1 to the writ petition shall remain stayed.

Order Date :- 9.12.2009

vs

Court No. - 36

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. & Another

Petitioner Counsel :- Ram Kishor Gupta, Mahesh Kr. Gupta

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Prakash Krishna, J.

Hon'ble Yogesh Chandra Gupta, J.

As prayed two weeks' further time is granted to file counter-affidavit.

The writ petition stands admitted.

Order Date :- 27.1.2010

Zh

Court No. - 32

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ram Kishor

Gupta, Mahesh Kr. Gupta

Counsel for Respondent :- C.S.C., Rajesh
Tripathi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pankaj Bhatia, J.

By order dated 09.12.2009, the Electricity Department was directed to file counter affidavit within one month. More than ten years have passed till date, but no counter affidavit has been filed, as yet, by the Electricity Department. It appears that Electricity Department is too casual in pursuing the matter, even though recovery has been stayed by order dated 09.12.2009.

In view of the above, the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand, Hamirpur (respondent no. 2) is directed to appear in person before this Court alongwith original record on 15th May, 2019.

Let notice be served to Executive Engineer through Chief Judicial Magistrate, Hamirpur.

List this case on 15th May, 2019.

Order Date :- 17.4.2019

SR

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ram Kishor Gupta, Mahesh Kr. Gupta

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pankaj Bhatia, J.

By order dated 17.4.2019 the following order was passed by this Court.

"By order dated 09.12.2009, the Electricity Department was directed to file counter affidavit within one month. More than ten years have passed till date, but no counter affidavit has been filed, as yet, by the Electricity Department. It appears that Electricity Department is too casual in pursuing the matter, even though recovery has been stayed by order dated 09.12.2009.

In view of the above, the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand, Hamirpur (respondent no. 2) is directed to appear in person before this Court alongwith original record on 15th May, 2019.

Let notice be served to Executive Engineer through Chief Judicial Magistrate, Hamirpur.

List this case on 15th May, 2019."

The order dated 17.4.2019 is self explanatory. In pursuance of the said order dated 17.4.2019, the Executive Engineer has appeared in person before this Court.

Today, counter affidavit has been filed. No plausible explanation has been given as to why counter affidavit has not been filed for the last ten years. It appears that the Electricity Department is taking the matter too casually.

More than ten years have passed, till date no effort was made by the Electricity Department to file counter affidavit even though the recovery was stayed by order dated 09.12.2009.

In view of the above, we take the counter affidavit filed

today on record subject to the condition of deposit of Rs.25,000/-(Rupees twenty five thousand only) as cost by the respondent No.2-Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand, Hamirpur. The said cost shall be deposited within three weeks by way of bank draft before the Registrar General, High Court, Allahabad for utilization for the welfare of the lawyers by the Advocate Association, High Court, Allahabad.

In case the money is not deposited within the stipulated period, the money shall be recovered as arrears of Land Revenue.

Two weeks' time is granted for filing rejoinder affidavit.

List this matter in the first week of July, 2019.

Respondent No.2 shall file an affidavit of compliance on or before the date of listing.

Order Date :- 15.5.2019
L.F./1

Court No. - 1

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ram Kishor Gupta, Mahesh Kr. Gupta

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Case called out in the revised list. None appears on behalf of the petitioner to press this writ petition. Learned Standing Counsel for the State is present.

It has been reported that there is a resolution of High Court Bar Association, Allahabad dated 14.8.2019 that the lawyers are abstaining from judicial work today, i.e. on 14.8.2019 and a request has been made by the Bar Association that 'No Adverse Orders' be passed in view of the decision of General House Meeting of the Association.

Hence, let the matter be listed again on 21.8.2019 for final hearing.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 14.8.2019

NS

Court No. - 1

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ram Kishor Gupta, Mahesh Kr. Gupta

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Sri Azim Ahmad Kazmi holding brief of Sri Ram Kishor Gupta, learned counsel for the petitioner states that the present matter is to be argued by A.K.Gour, learned Senior Advocate but because of some personal difficulty he is unable to appear before this Court and prays for an adjournment.

As prayed, list peremptorily in the next cause list for final hearing.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 21.8.2019/NS

Court No. - 1

Case :- WRIT - C No. - 66903 of 2009

Petitioner :- Balwan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ram Kishor Gupta, Mahesh Kr. Gupta

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

1. Heard Sri Ram Kishore Gupta, learned counsel for the petitioner and Ms. Usha Kiran, learned counsel for respondent no. 2.

2. The petitioner, in the present case, disputes that bill amount sought to be recovered against him pursuant to the recovery proceedings in question.

3. The argument advanced by the learned counsel for the petitioner is that once disconnection of electricity had taken place and for a period of two years there was no demand for recovery then the demand for recovery could not have been made after the expiry of two years under provision 6.15 of the Electricity Supply Code, 2005.

4. *Per contra*, the argument advanced by learned counsel for the respondent is that after the demand was raised, a dispute was raised by the petitioner and that matter had been subsequently adjudicated at the end of the concerned competent authority and that is why a fresh demand was raised in the year 2009 and, therefore, there cannot be a case where provision 6.15 of the Electricity Supply Code, 2005 as claimed by the petitioner, would be applicable.

5. Be that as it may, we find complexed questions of fact

involved in this case regarding assesment of Electricity bill, outstanding dues, objections filed and considered and final determination which too has been disputed. As it is agreed by the counsels for the parties that the petitioner has a remedy of approaching Consumer Grievance Redressal Forum against the demand raised by the respondent-Corporation and the recovery issued pursuant thereto vide clause 7.10 of the Supply Code, 2005, which has been impugned in the present writ petition, we are disposing of this writ petition with a direction that in case if the petitioner approaches the Consumer Grievance Redressal Forum within a further period of two weeks from today, his grievance shall be looked into and final order shall be passed within a further period of four weeks after giving full opportunity of hearing to the parties.

6. The recovery proceedings and citation already issued and impugned in the present writ petition shall be subject to final outcome of the decision of the Consumer Grievance Redressal Forum.

7. With the aforesaid observations and directions the writ petition stands disposed of.

Order Date :- 11.9.2019
Nadeem Ahmad

(Ajit Kumar,J.) (Ramesh Sinha,J.)